STANDARD OPERATING PROCEDURE			P-4720	
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **07/14/25**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES N.R.S. 43-245 THROUGH 43-2250 CALEA 44,2.1-3			
SUBJECT JUVENILE DETENTION/CITATION	CROSS REFERENCE G-6300 AUTHORIZED RESTRAINTS P-4500 CHILD ABUSE/NEGLECT P-4600 EMERGENCY PROTECTIVE CUSTODY P-4700 ARRESTS/CITATIONS P-4710 TRANSPORTATION OF SUSPECTS			

I. Purpose:

The purpose of this policy is to establish the procedures for citing, taking custody of and detaining juveniles.

II. Policy:

The role of the Sarpy County Sheriff's Office in dealing with juvenile law violators is to protect the public and act in the best interest of the child. Deputies shall adhere to all federal, state, and local guidelines when citing, taking custody of and detaining juveniles.

III. Definitions:

A. JUVENILE: Any person under the age of eighteen.

B. STATUS OFFENDER: A juvenile who has been charged with or adjudicated for conduct which would not be a crime if committed by an adult.

C. UNCONTROLLED JUVENILE: A juvenile who, by reason of being wayward or habitually disobedient, is uncontrolled by his or her parent, guardian, or custodian; who deports himself or herself so as to injure or endanger seriously the morals or health of himself, herself, or others; or who is habitually truant from home or school (N.R.S. 43-247, 3, b).

IV. Procedure:

A. Temporary Custody of a Juvenile without a Warrant: No juvenile taken into temporary custody shall be considered to have been arrested, except for the purpose of determining the validity of such custody under the Constitution of Nebraska or the

United States (N.R.S. 43-249). Deputies taking juveniles into physical custody shall adhere to all search, restraint, and transportation policies (P-4700 Arrests/Citations, G-6300 Authorized Restraints, and P-4710 Transportation of Suspects). A deputy may take a juvenile into temporary custody without a warrant or order of the court under the following guidelines (N.R.S. 43-248):

1. In the presence of the deputy, the juvenile(s) has violated a state law or municipal ordinance.

2. There are reasonable grounds to believe that a juvenile has run away from his or her parents, guardians, or custodian.

3. A Probation Officer has reasonable grounds to believe that a juvenile is in violation of probation and that the juvenile will attempt to leave the jurisdiction or place lives or property in danger.

4. The deputy has reasonable grounds to believe the juvenile is truant from school.

5. The officer has reasonable grounds to believe the juvenile is immune from prosecution for prostitution under subsection (5) of section 28-801.

6. A juvenile is seriously endangered in his or her surroundings and immediate removal appears to be necessary for the juvenile's protection (see P-4500 Child Abuse/Neglect).

7. A juvenile has committed an act or engaged in behavior described in subdivision (1), (2), (3)(b), or (4) of section 43-247 and such juvenile was under eleven years of age at the time of such act or behavior, and the deputy has reasonable cause to believe such juvenile committed such act or engaged in such behavior and was under eleven years of age at such time.

8. The officer believes the juvenile to be mentally ill and dangerous as defined in section 71-908 and that the harm described in that section is likely to occur before proceedings may be instituted before the juvenile court.

B. Law Offender-Deputy Responsibilities:

1. The deputy is responsible for taking reasonable measures to contact the juvenile's parent, guardian, custodian or relative in a timely manner.

2. The deputy shall contact the on-call juvenile probation officer (JPO) and advise him or her that detention is requested for all crimes against persons and felonious offences. The deputy should record this conversation (if possible)

with the JPO with their phone on speaker phone and body worn camera activated.

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3. The deputy shall transport the juvenile to the Juvenile Justice Center without delay (exception - the juvenile needs emergency medical care) and remain with the juvenile until the on-call JPO has arrived. Only a judge or JPO can authorize detention and placement.

4. If the judge or JPO determines a juvenile is to be released to his or her parents, guardian, custodian or adult relative, the juvenile shall be issued a Uniform Citation:

a) The deputy shall write “to be set” for the court date.

b) The deputy shall have a parents, guardian, custodian or adult relative sign the citation assuring the juvenile’s appearance in court. The juvenile may also sign the citation, in addition to the aforementioned adult.

c) The deputy shall complete a Probable Cause Affidavit and provide the completed form to the JPO. The deputy shall include a copy of the Affidavit with his or her arrest report.

d) The deputy shall complete a Uniform Citation.

(1) The deputy shall write “to be set” for the court date.
(2) The deputy shall write “detained” on the signature line if the JPO has authorized detention.

e) The deputy may be required to transport the juvenile to a secure facility (Douglas County Youth Center).

5. If the juvenile is believed to have committed a crime, but was not in the deputy’s presence, not a crime against person, and is not a felony, the deputy may issue a uniform citation and release the juvenile to his or her parent, guardian, custodian, or adult relative:

a) The deputy shall write “to be set” for the court date.

b) The deputy shall have a parent, guardian, custodian, or adult relative sign the citation assuring the juvenile’s appearance in court. The juvenile may also sign the citation, in addition to the aforementioned adult.

6. Arrangements may be made to place the juvenile in custody of Health and Human Services if the deputy believes the juvenile should not be left in the home due to concerns regarding the juvenile's safety.

a) The deputy shall complete an Affidavit for Removal of Juvenile from Parental or Custodial Home (Delinquency). The deputy shall include a copy of the Affidavit with his or her arrest report.

b) The deputy shall complete a Uniform Citation for Uncontrollable/Ungovernable per N.R.S. 43-247 (3)(b).

(1) The hearing shall be held in the Sarpy County Juvenile Court.
(2) The hearing shall be set for the next judicial day following the offense at 0830 hours. If the offense is on a weekend, the court date shall be set for the following Monday.

c) The deputy shall contact the Health and Human Services Hotline at 1-800-652-1999 for placement instructions. The on-call HHS Supervisor may also be contacted at 402-471-1605 for further assistance, if necessary. Should the On-Call HHS Supervisor need to be contacted outside normal business hours, contact the Abuse/Neglect Hotline 1-800-652-1999 in order to generate an intake prior to calling the On-Call Supervisor.

C. **Juvenile Runaway (Local)-Deputy Responsibilities:** The deputy making initial contact with a suspected runaway from the local area (Sarpy and surrounding counties) shall adhere to the following procedures:

1. The deputy shall verify with Communications that the juvenile has been entered as a runaway and what agency completed the runaway report.

2. If the runaway report was filed by another law enforcement agency, the deputy shall transfer custody of the juvenile to the appropriate jurisdiction.

3. If the runaway report was filed with the Sarpy County Sheriff's Office, the deputy may determine if the juvenile should be returned to his or her parents or guardians.

4. If the deputy determines detention is necessary, he or she shall adhere to detention procedures established in this policy (see section IV, B, 2 above).

5. If the juvenile is a ward of the state under the Department of Health and Human Services:

a) During normal business hours, the juvenile shall be transported to the office of the Department of Health and Human Services.

b) During non-business hours, the deputy shall contact the Department of Health and Human Services Hotline and request placement for the juvenile.

c) The deputy is responsible for transportation to the assigned location.

6. The deputy shall complete a returned runaway incident report and notify Communications to remove the juvenile from the system.

D. Juvenile Runaway (Out of State/County)-Deputy Responsibilities:

1. The deputy shall verify with Communications that the juvenile has been entered as a runaway and what agency completed the runaway report.

2. The deputy shall contact the on-call JPO and advise him or her that a runaway has been located.

3. The deputy shall transport the juvenile to the Juvenile Justice Center. The deputy shall wait for the on-call JPO to transfer custody of the juvenile.

4. The JPO or a Juvenile Services Officer shall make arrangements for the return of the juvenile.

E. Juvenile Warrant-Deputy Responsibilities:

1. The deputy shall verify with Communications that the juvenile has a valid warrant.

2. The deputy shall transport the juvenile to the Juvenile Justice Center. The deputy shall wait for the on-call JPO to transfer custody of the juvenile.

F. Juvenile Charged as an Adult: A deputy may request a juvenile be charged as an adult. The deputy should fax the request to the County Attorney's Office with a copy of the Affidavit as soon as possible.

G. Diversion Programs: The Sarpy County Juvenile Court and Sarpy County Attorney's Office are responsible for placing qualified juveniles into a diversion program.

H. Juveniles – Deputy Discretion: Juveniles present a special situation when it comes to minor crimes/infractions. Deputies are encouraged to use their discretion when it comes to minor offenses committed by juveniles. If a minor offense is committed and the victim "Just wants the kid talked to" or "Just wants the kid's parents talked to," it is acceptable to release the child to his/her parents or guardian without further law enforcement action if the deputy feels it is appropriate.

I. **Juveniles-Younger than 13 Years Old:** Juveniles younger than 13 years of age shall not be taken into custody for criminal offenses. The deputy shall complete an incident report and place the juvenile in the custody of a parent, guardian, or adult relative, unless the child needs to be removed for his or her safety.

J. **Traffic Infractions:** Juveniles may be cited for traffic infractions. The juvenile may sign the citation and be released. The deputy may contact the juvenile's parent or guardian, but is not required to do so.

K. **Non-Custodial Interview of Juveniles:** Juveniles will be afforded the same Constitutional rights afforded adults. (See P-4820 Interview and Miranda Warnings) If the interview takes place in school, see P-4830 Interviews in Schools.

1. **Sexual Assault Victims:** Deputies shall not interview juvenile victims of sexual assault. Only specially trained investigators (e.g., Project Harmony) will conduct interviews involving juvenile victims of sexual assault.

L. **Custodial Interrogation of Juveniles:** Juveniles will be afforded the same Constitutional rights afforded adults. (See P-4820 Interview and Miranda Warnings)

1. The juvenile's parent or guardian should be notified anytime a juvenile is taken into custody, unless doing so would be detrimental to the investigation. If a parent or guardian is unavailable, the deputy should contact the On-Call Juvenile Probation Officer for guidance.

M. **Abuse or Neglect of a Juvenile-Removal:** See P-4500 Child Abuse/Neglect

N. **Mentally Ill and Dangerous Juvenile:** See P-4600 Emergency Protective Custody